

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

10. LISA THOMASON V. LOUIS MOLAKIDES

PFL20210494

Petitioner began a campaign of filing Requests for Order (RFOs) on April 22, 2026. On that date Petitioner filed an RFO requesting modification of the current child custody and parenting plan orders, as well as attorney's fees, and appointment of Minors' Counsel. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on June 1, 2026 and a review hearing on July 16, 2026. Concurrent to the RFO, Petitioner filed multiple Declarations as well as a request for judicial notice. The court notes, Petitioner's RFO is 193 pages. The court cannot locate a Proof of Service which corresponds to these filings.

Petitioner then filed an ex parte request for emergency orders on April 30, which included a Memorandum of Points and Authorities, Declarations of Michale Whittaker, and two additional Declarations. Respondent filed a Responsive Declaration on April 30th. On May 1, 2026, the court denied Petitioner's ex parte request.

Petitioner filed yet another ex parte application on May 5, 2026, requesting an Order Shortening Time (OST). Again, Petitioner filed a Memorandum of Points and Authorities and multiple Declarations. Petitioner's filings are extremely lengthy, exceeding 100 pages. Respondent filed a Responsive Declaration on May 5, 2026. Petitioner then filed a Reply Declaration on May 5th. The court denied the OST and May 6th.

On May 11, 2026, Respondent filed and served an Objection to Petitioner's April 22, 2026 filed RFO for violating California Rule of Court 3.113 (d), California Rule of Court 5.113 (c), and Code of Civil Procedure § 435. Further, Respondent asserts he was not properly served with the RFO.

On May 18, 2026, Petitioner filed two applications for orders for leave to file Points and Authorities and Declarations exceeding 15 pages. Both requests were denied.

On May 21, 2026, Petitioner filed a Declaration in Response to Respondent's Objection. The court is unable to locate a Proof of Service which corresponds to this filing; therefore, it has not been considered.

On May 22, 2026, Petitioner filed another declaration, for which there is no Proof of Service, and therefore, has not been considered.

Petitioner again filed an ex parte request for emergency orders on May 28, 2026, along with an application for reconsideration, and additional Declarations and a

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

Memorandum of Points and Authorities. Respondent filed a Responsive Declaration on May 28th. On May 29th the court again denied Petitioner's request for ex parte orders.

On June 3, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, attorney's fees and costs, appointment of Minor's Counsel, and reconsideration of her request for leave to file an extended Memorandum of Points and Authorities. She filed a Memorandum of Points and Authorities in support of her RFO. Both documents were electronically served on June 3rd however Petitioner did not serve the required blank FL-320 or the required Notice of Tentative Ruling.

On June 25th, Respondent filed Objections on Lack of Timely Service and Request to Drop. According to Respondent, as of June 24, 2026, he had not received a copy of the pending RFO. He argues that service on that date or any later date is untimely and therefore, he requests the matter be dropped.

Petitioner filed yet another ex parte application on June 25, 2026. Petitioner again filed multiple Declarations and a Memorandum of Points and Authorities. Petitioner also filed a Response to Respondent's Objection. Respondent filed a Responsive Declaration on June 25, 2026. The court again denied the ex parte orders on June 26, 2026.

Petitioner filed an ex parte application for emergency orders on June 26, 2026. Again, Petitioner filed a Memorandum of Points and Authorities and a Declaration in support of the request. Petitioner then filed a supplemental Declaration and Supplemental Points and Authorities on June 29, 2026. The court again denied Petitioner's ex parte requests and cautioned Petitioner that continued abuse of ex parte filings may result in sanctions or the court deeming Petitioner to be a vexatious litigant.

Both parties appeared at the CCRC appointment. The parties were able to reach some agreements. The report does not contain any recommendations, as there is a current Temporary Domestic Violence Restraining Order in place, which is pending a hearing on July 23, 2026. A report with the parties agreements was prepared on June 29, 2026 and mailed to the parties on June 30th.

Petitioner filed a Proof of Service on July 2, 2026, which purports to show service on May 18, 2026, by mail of an FL-300 with attachments, and declarations, and a long cause hearing declaration. However, it does not show all the required documents were served on Respondent. The court has serious doubts as to the veracity of this Proof of Service.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

Petitioner filed an Opposition to Respondent's Objection and Request to Drop on July 6, 2026. She concurrently filed a Declaration in Support of the Opposition. Both were served on July 6th.

Petitioner filed another Proof of Service on July 6, 2026, showing service of an FL-300, Attachment 7 to Request for Order, Declaration of Lisa Whitaker, Declaration of Monty Whitaker, Request for Long-Cause Hearing and Notice of Related Proceedings. As set forth above, with the number of filings in this action, it is impossible to know which FL-300 this Proof of Service correlates with and regardless, Civil Procedure section 1005(b) which states: "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California..." Electronic service extends the 16 days by two additional days. This would have made June 21, 2026 the last day for electronic service.

The court has read and considered the filings as outlined above. The court again strongly cautions Petitioner that such a pattern of filings, as well as continuing to file documents of excessive length, may result in Petitioner being sanctioned and/or Petitioner being deemed a vexatious litigant.

The court finds the agreements reached by the parties in the CCRC appointment to be in the best interests of the minors. The court finds good cause to adopt the agreements of the parties only. The court adopts the agreements of the parties as set forth in the June 29, 2026 CCRC report as its orders.

The court sustains Respondent's objections to the April 22, 2026 filed RFO. The April 22, 2026 filed RFO is dropped from calendar due to the lack of proper in addition to not conforming with California Rule of Court 3.113 (d), California Rule of Court 5.113 (c), and Code of Civil Procedure § 435.

Likewise, Petitioner's June 3, 2026 filed RFO is dropped from calendar due to the lack of proper service. In addition to not being properly served, for failure to serve all the required documents, Petitioner failed to concurrently file an Income and Expense Declaration which is a prerequisite to the request for attorney's fees. Petitioner's request for a long cause hearing is also denied.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

As noted above, the parties are pending a hearing on July 23, 2026, in Department 8, on Petitioner's request for a Domestic Violence Restraining Order (DVRO). Petitioner has requested child custody and parenting plan orders in her application. Therefore, the parties may be referred back to CCRC at the conclusion of the hearing on the DVRO.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: THE COURT AGAIN STRONGLY CAUTIONS PETITIONER THAT SUCH A PATTERN OF FILINGS, AS WELL AS CONTINUING TO FILE DOCUMENTS OF EXCESSIVE LENGTH, MAY RESULT IN PETITIONER BEING SANCTIONED AND/OR PETITIONER BEING DEEMED A VEXATIONS LITIGANT.

THE COURT FINDS THE AGREEMENTS REACHED BY THE PARTIES IN THE CCRC APPOINTMENT TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT FINDS GOOD CAUSE TO ADOPT THE AGREEMENTS OF THE PARTIES ONLY. THE COURT ADOPTS THE AGREEMENTS OF THE PARTIES AS SET FORTH IN THE JUNE 29, 2026 CCRC REPORT.

THE COURT SUSTAINS RESPONDENT'S OBJECTIONS TO THE APRIL 22, 2026 FILED RFO. THE APRIL 22, 2026 FILED RFO IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE AS WELL AS FOR NOT CONFORMING WITH CALIFORNIA RULE OF COURT 3.113 (D), CALIFORNIA RULE OF COURT 5.113 (C), AND CODE OF CIVIL PROCEDURE § 435.

LIKEWISE, PETITIONER'S JUNE 3, 2026 FILED RFO IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. IN ADDITION TO NOT BEING PROPERLY SERVED, FOR FAILURE TO SERVE ALL THE REQUIRED DOCUMENTS, PETITIONER FAILED TO CONCURRENTLY FILE AN INCOME AND EXPENSE DECLARATION WHICH IS A PREREQUISITE TO THE REQUEST FOR ATTORNEY'S FEES. PETITIONER'S REQUEST FOR A LONG CAUSE HEARING IS ALSO DENIED.

AS NOTED ABOVE, THE PARTIES ARE PENDING A HEARING ON JULY 23, 2026, IN DEPARTMENT 8, ON PETITIONER'S REQUEST FOR A DOMESTIC VIOLENCE RESTRAINING ORDER (DVRO). PETITIONER HAS REQUESTED CHILD CUSTODY AND PARENTING PLAN ORDERS IN HER APPLICATION. THEREFORE, THE PARTIES MAY BE REFERRED BACK TO CCRC AT THE CONCLUSION OF THE HEARING ON THE DVRO.

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 16, 2026

8:30 a.m./1:30 p.m.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.